



**DISPOSITION OF CHARGES**  
PD 488-142A (Rev. 1-08)

|                     |
|---------------------|
| CASE NO.            |
| 2021-24423          |
| BOOK & PAGE NO.     |
| Page 1 of 2         |
| PERSONNEL ORDER NO. |

|                                           |                  |                      |                |                                        |
|-------------------------------------------|------------------|----------------------|----------------|----------------------------------------|
| SPECIFICATIONS AGAINST<br>RANK/SURNAME    |                  | FIRST                | M.I.           | COMMAND                                |
| Inspector Lance,                          |                  | Jesse                |                | Housing Borough Brooklyn               |
| SHIELD NO.                                | TAX REGISTRY NO. |                      | DATE APPOINTED |                                        |
| 00000                                     | 923789           |                      | July 7, 1999   |                                        |
| RANK/NAME OF COMPLAINANT                  |                  |                      |                | COMMAND                                |
| Deputy Chief Prosecutor Suzanne D. O'Hare |                  |                      |                | CCRB - Administrative Prosecution Unit |
| DATE OF CHARGES                           |                  | DATE TRIAL COMMENCED |                | DATE TRIAL CONCLUDED                   |
| December 13, 2021                         |                  | February 16, 2023    |                | March 2, 2023                          |
| TRIAL COMMISSIONER                        |                  |                      |                |                                        |
| Honorable Jeff S. Adler                   |                  |                      |                |                                        |

| SPECIFICATIONS                                                                                                                                                                                                                                                                                                                                                                 | DISPOSITION | RECOMMENDED PENALTY                                    |                                           |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|--------------------------------------------------------|-------------------------------------------|
|                                                                                                                                                                                                                                                                                                                                                                                |             | PLEA <input type="checkbox"/>                          | TRIAL <input checked="" type="checkbox"/> |
| 1. Inspector Jesse Lance, on or about June 4, 2020, at approximately 2215, while assigned to Housing Borough Brooklyn, and on duty, in the vicinity of Washington Avenue, between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he struck § 87(2)(b) multiple times with a baton without police necessity.                                   | NOT GUILTY  | It is recommended that Respondent be found Not Guilty. |                                           |
| 2. Inspector Jesse Lance, on or about June 4, 2020, at approximately 2215, while assigned to Housing Borough Brooklyn, and on duty, in the vicinity of Washington Avenue, between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he used physical force against § 87(2)(b) in that he grabbed and pushed § 87(2)(b) without police necessity. | NOT GUILTY  |                                                        |                                           |

Reviewed by Deputy Commissioner of Trials

*R. Maldonado*  
DEPUTY COMMISSIONER

3/28/23  
DATE

Police Commissioner's Approval:

- ☒ Approved  
☐ Disapproved  
☐ Other Action (Describe)

*Jeff S. Adler*  
POLICE COMMISSIONER

6/16/23  
DATE





**DISPOSITION OF CHARGES**  
PD 468-142A (Rev. 1-06)

|                     |
|---------------------|
| CASE NO.            |
| 2021-24423          |
| BOOK & PAGE NO.     |
| Page 2 of 2         |
| PERSONNEL ORDER NO. |

|                                           |                      |       |                      |                                        |
|-------------------------------------------|----------------------|-------|----------------------|----------------------------------------|
| SPECIFICATIONS AGAINST<br>RANK/SURNAME    |                      | FIRST | M.I.                 | COMMAND                                |
| Inspector Lance,                          |                      | Jesse |                      | Housing Borough Brooklyn               |
| SHIELD NO.                                | TAX REGISTRY NO.     |       | DATE APPOINTED       |                                        |
| 00000                                     | 923789               |       | July 7, 1999         |                                        |
| RANK/NAME OF COMPLAINANT                  |                      |       |                      | COMMAND                                |
| Deputy Chief Prosecutor Suzanne D. O'Hare |                      |       |                      | CCRB - Administrative Prosecution Unit |
| DATE OF CHARGES                           | DATE TRIAL COMMENCED |       | DATE TRIAL CONCLUDED |                                        |
| December 13, 2021                         | February 16, 2023    |       | March 2, 2023        |                                        |
| TRIAL COMMISSIONER                        |                      |       |                      |                                        |
| Honorable Jeff S. Adler                   |                      |       |                      |                                        |

| SPECIFICATIONS                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | DISPOSITION | RECOMMENDED PENALTY           |                                           |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|-------------------------------|-------------------------------------------|
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |             | PLEA <input type="checkbox"/> | TRIAL <input checked="" type="checkbox"/> |
| 3. Inspector Jesse Lance, on or about August 11, 2021, at approximately 1321, while assigned to Housing Borough Brooklyn, and on duty, in the vicinity of 100 Church Street, New York County, provided a misleading official statement to the CCRB in that he stated he was unable to identify himself as the officer striking § 87(2)(b) with the baton in the video of the incident, despite identifying himself as the subject officer in still photographs of the same incident. | NOT GUILTY  | See Page 1.                   |                                           |

Reviewed by Deputy Commissioner of Trials

*R. Maldonado*  
DEPUTY COMMISSIONER

3/28/23  
DATE

Police Commissioner's Approval:

- ☒ Approved  
☐ Disapproved  
☐ Other Action (Describe)

*Jeff S. Adler*  
POLICE COMMISSIONER

6/16/23  
DATE





**DISPOSITION OF CHARGES**  
PD 488-142A (Rev. 1-06)

|                     |             |
|---------------------|-------------|
| CASE NO.            | 2021-24426  |
| BOOK & PAGE NO.     | Page 1 of 1 |
| PERSONNEL ORDER NO. |             |

|                                           |                      |       |                      |                                        |
|-------------------------------------------|----------------------|-------|----------------------|----------------------------------------|
| SPECIFICATIONS AGAINST<br>RANK/SURNAME    |                      | FIRST | M.I.                 | COMMAND                                |
| Police Officer Johnson,                   |                      | Corey |                      | 77 Detective Squad                     |
| SHIELD NO.                                | TAX REGISTRY NO.     |       | DATE APPOINTED       |                                        |
| 13116                                     | 960090               |       | October 7, 2015      |                                        |
| RANK/NAME OF COMPLAINANT                  |                      |       |                      | COMMAND                                |
| Deputy Chief Prosecutor Suzanne D. O'Hare |                      |       |                      | CCRB - Administrative Prosecution Unit |
| DATE OF CHARGES                           | DATE TRIAL COMMENCED |       | DATE TRIAL CONCLUDED |                                        |
| December 13, 2021                         | February 16, 2023    |       | March 2, 2023        |                                        |
| TRIAL COMMISSIONER                        |                      |       |                      |                                        |
| Honorable Jeff S. Adler                   |                      |       |                      |                                        |

| SPECIFICATIONS                                                                                                                                                                                                                                                                                                                                                                                                                                                 | DISPOSITION | RECOMMENDED PENALTY                                                                                                    |                                           |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|------------------------------------------------------------------------------------------------------------------------|-------------------------------------------|
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                |             | PLEA <input type="checkbox"/>                                                                                          | TRIAL <input checked="" type="checkbox"/> |
| 1. Police Officer Corey Johnson, on or about June 4, 2020, at approximately 2215, while assigned to the 077 Detective Squad and on duty, in the vicinity of Washington Avenue, between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he pushed § 87(2)(b) without police necessity.                                                                                                                                          | GUILTY      | It is recommended that Respondent forfeit three (3) vacation days.<br><i>See P.C.'s Memorandum dated June 16, 2023</i> |                                           |
| 2. Police Officer Corey Johnson, on or about September 8, 2021, at approximately 1109, while assigned to the 077 Detective Squad, and on duty, in the vicinity of 100 Church Street, New York County, provided a misleading official statement to the CCRB in that he stated he did not recognize himself or any officers depicted in the video of the incident, despite identifying himself as the subject officer in still photographs of the same incident. | NOT GUILTY  |                                                                                                                        |                                           |

Reviewed by Deputy Commissioner of Trials

*R. Maldonado*  
DEPUTY COMMISSIONER

*3/28/23*  
DATE

Police Commissioner's Approval:

- ☐ Approved  
☒ Disapproved  
☐ Other Action (Describe)

*Jeff S. Adler*  
POLICE COMMISSIONER

*6/16/23*  
DATE



POLICE DEPARTMENT

March 28, 2023

-----X  
In the Matter of the Charges and Specifications :  
- against - :

Inspector Jesse Lance :  
Tax Registry No. 923789 :  
Housing Borough Brooklyn :

Case No.  
2021-24423

Police Officer Corey Johnson :  
Tax Registry No. 960090 :  
77 Detective Squad :

Case No.  
2021-24426

-----X  
At: Police Headquarters  
One Police Plaza  
New York, NY 10038

Before: Honorable Jeff S. Adler  
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB-APU: Nicole Jardim and Amanda Rodriguez, Esqs.  
Civilian Complaint Review Board  
100 Church Street, 10<sup>th</sup> Floor  
New York, NY 10007

For Respondent Lance: Louis C. La Pietra, Esq.  
La Pietra & Krieger, P.C.  
30 Glenn Street, Suite 105  
White Plains, NY 10603

For Respondent Johnson: John Tynan, Esq.  
Worth, Longworth & London, LLP  
111 John Street, Suite 640  
New York, NY 10038

To:

HONORABLE KEECHANT L. SEWELL  
POLICE COMMISSIONER  
ONE POLICE PLAZA  
NEW YORK, NY 10038



## CHARGES AND SPECIFICATIONS

### Disciplinary Case No. 2021-24423

1. Inspector Jesse Lance, on or about June 4, 2020, at approximately 2215, while assigned to Housing Borough Brooklyn, and on duty, in the vicinity of Washington Avenue, between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he struck § 87(2)(b) multiple times with a baton without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

2. Inspector Jesse Lance, on or about June 4, 2020, at approximately 2215, while assigned to Housing Borough Brooklyn, and on duty, in the vicinity of Washington Avenue, between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he used physical force against § 87(2)(b) in that he grabbed and pushed § 87(2)(b) without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

3. Inspector Jesse Lance, on or about August 11, 2021, at approximately 1321, while assigned to Housing Borough Brooklyn, and on duty, in the vicinity of 100 Church Street, New York County, provided a misleading official statement to the CCRB in that he stated he was unable to identify himself as the officer striking § 87(2)(b) with the baton in the video of the incident, despite identifying himself as the subject officer in still photographs of the same incident.

A.G. 304-10

MAKING FALSE STATEMENTS

### Disciplinary Case No. 2021-24426

1. Police Officer Corey Johnson, on or about June 4, 2020, at approximately 2215, while assigned to the 077 Detective Squad and on duty, in the vicinity of Washington Avenue, between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he pushed § 87(2)(b) without police necessity.

P.G. 221-02, Page 2, Prohibition 11

USE OF FORCE

2. Police Officer Corey Johnson, on or about September 8, 2021, at approximately 1109, while assigned to the 077 Detective Squad, and on duty, in the vicinity of 100 Church Street, New York County, provided a misleading official statement to the CCRB in that he stated he did not recognize himself or any officers depicted in the video of the incident, despite identifying himself as the subject officer in still photographs of the same incident.

A.G. 304-10

MAKING FALSE STATEMENTS



## REPORT AND RECOMMENDATION

The above-named members of the Department appeared before me on February 16 and March 2, 2023. Respondents, through their counsel, entered pleas of Not Guilty to the subject charges. The CCRB called § 87(2)(b) and CCRB Investigator McKenzie Dean as witnesses, and introduced into evidence video footage of the incidents. Respondents testified on their own behalves. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find as follows:

Respondent Lance:

Specifications 1 and 2 (force): Not Guilty

Specification 3 (misleading statement): Not Guilty

Respondent Johnson:

Specification 1 (force): Guilty

Specification 2 (misleading statement): Not Guilty

Recommended penalty for Respondent Johnson: Three (3) vacation days.

## ANALYSIS

The charges against these two Respondents stem from their interactions with two separate individuals at approximately 2215 hours on the evening of June 4, 2020. Respondents were in the vicinity of Washington Avenue and Fulton Street in Kings County, in connection with protests that were occurring throughout the city at the time. It is alleged that Respondent Johnson wrongfully pushed § 87(2)(b) that evening, and that Respondent Lance wrongfully struck § 87(2)(b) multiple times with a baton, and also pushed § 87(2)(b) without police



necessity. Both Respondents also are charged with making misleading statements during their official interviews with the CCRB, in that they erroneously claimed that they were unable to recognize themselves in the video footage of the incident.

§ 87(2)(b) who was in Canada at the time of the trial, testified remotely regarding his interaction with police officers at the location. § 87(2)(b) a journalist, was on assignment for § 87(2)(b) covering the protests that evening. He used his bicycle to ride to different protest locations throughout the night. As a credentialed journalist, § 87(2)(b) was exempt from the curfew that was in effect, with the understanding that he not interfere in police work. § 87(2)(b) was wearing a white t-shirt, bicycle helmet, and had his press credential hanging around his neck. Near the corner of Washington and Fulton, he observed police officers, with their batons out, pushing protesters out of the intersection, since it was past curfew and the protesters were not obeying the police commands to disperse. § 87(2)(b) testified that he attempted to position himself at a safe distance from the intersection near some trash bags, and used his phone to try to record what was occurring. (Tr. 119-22, 130-36)

As he was attempting to record, § 87(2)(b) was pushed backward. He fell to the ground near the trash bags, and an officer extended their hand to help § 87(2)(b) back to his feet. § 87(2)(b) testified that as he attempted to maneuver around the garbage bags to move away from the police, he was again pushed from behind; he did not know who pushed him, but there were police officers standing all around him. § 87(2)(b) fell forward into another police officer and briefly went to his knees, then was able to get back up and move away with his bicycle to a safer area. § 87(2)(b) did not seek medical treatment. (Tr. 122-24, 129-30, 136-42)

Video footage posted by an individual on Twitter captured the sequence of events described by § 87(2)(b) (CCRB Ex. 1) At about the 0:15 mark of that footage, § 87(2)(b) can be seen

falling backward onto some trash bags. At 0:26, he gets back on his feet with his bicycle in his hands, and as he turns and begins to move away, § 87(2)(b) is pushed from behind by more than one police officer, one of whom is Respondent Johnson (CCRB Ex. 1 at 0:28). As a result of the pushes, an off-balance § 87(2)(b) falls into a sergeant who has a baton in his hand, and § 87(2)(b) goes back to the ground. § 87(2)(b) quickly stands back up and walks away.

§ 87(2)(b) testified that at the time of the incident, he was riding his bicycle to the home of his child's mother. He was wearing a dark, navy shirt, with a bookbag on his back. At the intersection of Washington and Fulton, he observed police officers pushing and cursing at protesters. § 87(2)(b) stopped for approximately five minutes to watch what was happening. From behind, he heard a voice telling him to "get the fuck out of here," so he started walking away with his bicycle between his legs. According to § 87(2)(b) a tall police officer in a white shirt struck his bicycle with a baton, and then struck § 87(2)(b) hard on his right side, from his waist up into the neck/shoulder area. Some of the blows from the baton struck his backpack as well. In total, § 87(2)(b) estimated that he was struck with the baton more than five times; he stated that several of those strikes were not captured by the video footage, since they occurred before the start of the video. § 87(2)(b) asked the officers what he had done, but received no response. Instead, § 87(2)(b) was held against a fence for a couple of seconds, then forcibly swung to the ground where an officer knelt on his back. He received multiple strikes with an object below his waist from an unknown officer, was handcuffed, placed in a police van, and transported to the precinct. (Tr. 148-54, 162-69, 172-75, 178-84)

After he was released from the precinct with a summons, § 87(2)(b) went to § 87(2)(b), because he was having difficulty walking. At the hospital, x-rays were taken and he was given pain-relief medication. § 87(2)(b) testified that he also complained that he was



experiencing pain to the right side of his head, and in his shoulder/neck area. About two weeks later, § 87(2)(b) went to a medical center to receive physical therapy for his right leg; he did not seek treatment, or complain of pain, for any injuries connected to his right torso or shoulder area. A copy of his medical records from § 87(2)(b) (CCRB Ex. 8) state that his chief complaint was “multiple bruises to both lower extremities,” though the records also indicate right shoulder pain. (Tr. 155-56, 160-62, 168, 172-74)

According to § 87(2)(b) the summons was dismissed a couple of weeks after the incident.

§ 87(2)(b) has a civil lawsuit pending against Respondent Lance. (Tr. 155, 157)

Video footage posted on the New York Times website, which is essentially the same as the footage in CCRB Ex. 1, captured the interaction between Respondent Lance and § 87(2)(b) (CCRB Ex. 7; Resp. Ex. A (slowed-down version)) At about the 0:04 mark, § 87(2)(b) can be seen reaching out with his left arm toward Respondent Lance, who is wearing a white shirt and a helmet, and is walking behind § 87(2)(b) is straddling his bicycle as he moves away from Respondent Lance. Respondent Lance appears to strike § 87(2)(b) backpack two times with his baton. § 87(2)(b) turns and asks, “What did I do?” Respondent Lance maneuvers § 87(2)(b) against a fence; § 87(2)(b) latches on to the fence with his left hand in order to prevent being brought down. Other police officers grab control of § 87(2)(b) pull him away from the fence, and bring him to the ground.

CCRB Investigator McKenzie Dean testified that from reviewing the video footage, as well as photographs of the incident taken by an individual at the scene (Dept. Ex. 2), and conducting interviews with several police officers, she was able to identify both Respondents. Dean then separately conducted official interviews with each Respondent. On August 11, 2021, she interviewed Respondent Lance remotely; a transcript of that interview was introduced into

evidence (CCRB Ex. 6). Dean's remote interview with Respondent Johnson occurred on September 8, 2021; the transcript of that interview was admitted into evidence as well (CCRB Ex. 4). (Tr. 42, 50, 55-57, 102)

During their interviews, both Respondents repeatedly stated that they could not recall the incident. Dean showed them the video footage from the incident (CCRB Exs. 1 & 7), but neither Respondent was able to definitively identify himself from the video. Dean acknowledged that the footage was dark, and that she was showing the video to them remotely, rather than in-person. Respondent Johnson specifically complained that the video was "blurry." Dean also showed the photographs from the incident (CCRB Ex. 2) to each Respondent, who then were able to identify themselves. However, even after seeing those photographs, neither Respondent could specifically recollect this particular incident, or identify themselves in the video. (CCRB Ex. 4 at 18-19, 32-34; Ex. 6 at 24-27; Tr. 53, 62-63, 65-69, 73-74, 76-78, 81-82, 103-07, 112-13)

Respondent Johnson testified that on the day of the incident he was directed to multiple precincts in response to protests. He repeatedly encountered out-of-control, violent behavior, as people were throwing bottles and bricks, and ramming bicycles into police officers, who were greatly outnumbered. At approximately 2215 hours, he responded to Washington and Fulton to assist with crowd control of more than 200 protesters, who were in the streets and on the sidewalks past the curfew despite repeated announcements over a loudspeaker instructing them to disperse. At the direction of supervisors, Respondent Johnson ordered people to clear the streets and move onto the sidewalks. (Tr. 201-10, 236-37)

As he was attempting to get people to disperse, Respondent Johnson observed several officers involved in the arrest of § 87(2)(b) though at the time he did not know the identity of the arrestee or any of the officers involved. Respondent Johnson testified that he observed § 87(2)(b) on



the ground positioned on some trash, about five feet away from where § 87(2)(b) was being arrested; Respondent Johnson conceded that § 87(2)(b) was not acting in a violent or threatening manner. As § 87(2)(b) stood up, Respondent Johnson ordered him to get back; § 87(2)(b) was within arm's reach of Respondent Johnson, who did not, at the time, realize that § 87(2)(b) was a member of the press. Respondent Johnson reached out his arm in order to move § 87(2)(b) away, pushing him from behind in his shoulder area. According to Respondent Johnson, he had no ill-intent to hurt § 87(2)(b) and was using the least intrusive force against him in order to clear the area. § 87(2)(b) fell forward into another officer and went down to the ground, then popped right back up and proceeded to move away from the area. (Tr. 211-20, 237-39, 242-46)

On September 8, 2021, approximately 15 months after the incident, Respondent Johnson was interviewed remotely by the CCRB; the investigators were at their homes, while Respondent Johnson was situated in front of a laptop computer at the offices of the CCRB. Respondent Johnson testified that he was shown the video footage from the incident, but was unable to identify himself, as the video he viewed was dark and blurry. He did identify himself in a photograph that was shown to him after it was enlarged. Having subsequently reviewed the video and investigative notes for this matter, Respondent Johnson now recalls the incident. (Tr. 211, 222-30, 234)

Respondent Lance testified that in the days surrounding this incident, he was working extended shifts, handling multiple protests, as well as several shootings. In addition to his regular responsibilities as the Housing Borough Commander, he was responding from scene-to-scene where officers needed assistance throughout Brooklyn, and was involved in hundreds of encounters. On the day of the incident, Respondent Lance worked a 20-hour shift. As such, when he was interviewed remotely by the CCRB on August 11, 2021, approximately 14 months

after the incident, he could not recall this particular encounter, which lasted approximately 20 seconds and was "unremarkable." At that interview, he did not deny being at this incident, but merely indicated that he could not definitively state that he was the officer depicted in the video footage that was shown to him, which was extremely dark as he viewed it on a laptop.

Respondent Lance did, however, identify himself in the photograph that was shown to him.

Since the date of that interview, Respondent Lance has viewed the video footage hundreds of times, and reviewed approximately 1,600 pages of discovery, and now recalls the incident. (Tr. 253-58, 281, 292, 312-14; Resp. Ex. A)

According to Respondent Lance, the scene at Washington and Fulton was chaotic, with bottles being thrown and bicycles being used by protesters to obstruct officers. Protesters were playing a "cat and mouse" game, using their bicycles as barriers, moving away to evade apprehension by the police, then returning to obstruct again. Respondent Lance testified that he initially observed § 87(2)(b) in the street obstructing police officers with his bicycle. (Tr. 259, 282-83, 286, 304-08)

When § 87(2)(b) moved to the sidewalk, Respondent Lance attempted to effect a lawful arrest for obstruction and disobeying the curfew. Respondent Lance extended his left hand in order to grab control of § 87(2)(b) but § 87(2)(b) bladed his body and pushed Respondent Lance's arm as he attempted to get away. In an effort to gain compliance, Respondent Lance used his baton to strike § 87(2)(b) backpack two times; he testified that he deliberately avoided striking § 87(2)(b) in the body in order to cause the least amount of damage. Respondent Lance insisted that his entire interaction with § 87(2)(b) was captured by the video footage, and that the only two times he swung his baton were the two strikes in the backpack. Respondent Lance then grabbed § 87(2)(b) with both hands, but § 87(2)(b) continued to resist by grabbing onto a fence. Other



police officers moved in to assist, and brought § 87(2)(b) to the ground. Respondent Lance had no further involvement with § 87(2)(b) and moved on to deal with other protests, as well as a shooting that occurred a few hours later. He did not instruct the arresting officer regarding the arrest charges, and only later learned that § 87(2)(b) had been issued a summons for disobeying the curfew. (Tr. 259-60, 264-66, 268-78, 287-93, 296-97, 302, 309-11)

Both Respondents face charges of wrongfully using force, and for making misleading statements during their CCRB interviews. These allegations will be considered separately.

### *Force charges*

#### Respondent Lance

Specification 1 charges Respondent Lance with wrongfully striking § 87(2)(b) with a baton; the parties are in agreement that this charge relates only to the two baton strikes captured in the video footage, and not the strikes that § 87(2)(b) alleged occurred before then. Specification 2 charges Respondent Lance with wrongfully grabbing and pushing § 87(2)(b). Section 221-01 of the Patrol Guide states that force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or when it is reasonable to place a person in custody or to prevent escape from custody. Any application of the use of force must be reasonable under the circumstances.

In support of the allegations, the CCRB relies primarily on the trial testimony of § 87(2)(b) in conjunction with the video footage of the incident (CCRB Exs. 1 & 7). § 87(2)(b) has a civil lawsuit pending against Respondent Lance, giving him a motive to embellish his account and minimize his own wrongdoing. He claimed that he was merely standing at the location for five minutes observing the protests when he was confronted by Respondent Lance for no reason, and struck multiple times with a baton.

Respondent Lance, in contrast, testified in a detailed, logical manner about his encounter with § 87(2)(b) and I credit his account. He did not randomly confront § 87(2)(b) just for standing in the area; rather, he observed § 87(2)(b) in the street using his bicycle to obstruct police officers, before retreating as part of the "cat and mouse" game engaged in by many protesters. Based on his observations of § 87(2)(b) Respondent Lance determined to have him placed under arrest, and confronted § 87(2)(b) on the sidewalk for that purpose. § 87(2)(b) resisted Respondent Lance's efforts to do so, first pushing his arm away, then trying to walk off. In order to gain compliance, Respondent Lance used his baton to strike § 87(2)(b) backpack two times; I credit Respondent Lance's testimony, corroborated by the video footage, that he was particularly careful to strike the backpack, as opposed to § 87(2)(b) body, in order to use the minimal amount of force necessary under the circumstances. When § 87(2)(b) continued to walk away, Respondent Lance grabbed § 87(2)(b) with his hands and maneuvered him against a fence. § 87(2)(b) latched onto the fence, refusing to yield his hands, until other police officers pulled him away and brought him to the ground, where he was placed in handcuffs. § 87(2)(b) was charged only with disobeying the curfew, a charge which was later dismissed, but Respondent Lance was not involved in the arrest processing, including the decision regarding the specific arrest charges.

In assessing the actions of Respondent Lance, it is important to keep in mind the chaotic context in which this encounter occurred. Respondent Lance was attempting to effect a lawful arrest in the middle of a violent crowd that was throwing bottles and acting hostilely toward the police. The individual he was trying to take into custody was resisting Respondent Lance's efforts to do so. Under the specific circumstances presented here, Respondent Lance's measured acts to overcome the resistance of § 87(2)(b) constituted a reasonable use of force. Accordingly, I find Respondent Lance not guilty of Specifications 1 and 2.



Respondent Johnson

Specification 1 charges Respondent Johnson with wrongfully pushing § 87(2)(b) without police necessity. As indicated above, any application of the use of force must be reasonable under the circumstances.

§ 87(2)(b) testified in a consistent and logical manner about the incident. He described how as a credentialed member of the press, he was permitted to be out past the curfew, as long as he did not interfere with the work of the police. Indeed, his press credential, which he was wearing around his neck, is visible in the video footage (CCRB Ex. 1 at 0:27) and photographs (CCRB Ex. 2R) in evidence. § 87(2)(b) stood on the sidewalk near some trash bags, as he attempted to observe the interactions between the protesters and the police from a safe distance. While standing there, he was pushed to the ground by an unknown person, then struggled back to his feet. § 87(2)(b) described how as he turned to walk away, he again was pushed from behind; he fell into another officer before going to his knees. § 87(2)(b) returned to his feet and was able to move away to a safe location. He did not claim to have suffered any physical injuries, though the incident was somewhat traumatic for him. § 87(2)(b) testimony was straightforward and did not appear to be embellished, and I credit his account of what occurred.

Moreover, the video footage corroborates his description of events. § 87(2)(b) can be seen standing up after he is initially pushed to the ground. He turns and begins to walk away, and does not appear to be interfering with the arrest of § 87(2)(b) when Respondent Johnson pushes him from behind (CCRB Ex. 1 at 0:28). When he is pushed, not only does § 87(2)(b) not appear to be presenting any danger to the police, he is following their directives to leave the location.

As discussed above, this Tribunal is mindful of the extraordinarily difficult and dangerous conditions that Respondent Johnson and his fellow officers faced that evening. Also,

I credit Respondent Johnson's testimony that he was not intending to injure § 87(2)(b) with the push, and was merely trying to clear the area. Nevertheless, under these specific circumstances, his push from behind was gratuitous and unreasonable. § 87(2)(b) who was complying with the order to disperse, was shoved by Respondent Johnson without police necessity; the push knocked him off-balance into another officer, and he fell back to the ground. Accordingly, I find Respondent Johnson guilty of Specification 1.

*Misleading statements charges*

Specification 3 charges Respondent Lance with providing misleading official statements to the CCRB, while Respondent Johnson faces the same allegation under Specification 2 of his charges. Section 304-10 of the Administrative Guide defines a misleading statement as one that is intended to misdirect the fact finder, and materially alter the narrative, by making repeated claims of "I do not remember" or "I do not know" when a reasonable person under similar circumstances would recall, or have been aware of, such material facts.

Both Respondents were interviewed more than one year after the incident: Respondent Lance on August 11, 2021, and Respondent Johnson on September 8, 2021. Each of them stated throughout their respective interviews that they could not recall this particular incident. Viewing the video footage, which they described as dark and blurry, did not refresh their recollections; they still could not recall the incident, or identify themselves or other officers in the video. They also were shown photographs of themselves at the location: both Respondents did identify themselves in the photographs, but continued to maintain that they did not recall the incident itself and could not definitively identify themselves in the video footage. Sometime after their interviews, after reviewing the video multiple times as well as the discovery material, they both were able to recall the incident, identify themselves in the video, and testify about it at trial.



Given the passage of time between the incident and the CCRB interviews, and after having carefully reviewed the video footage myself, I credit the testimony of each Respondent that they genuinely could not recall this matter at the time of the interviews, and that they could not definitively identify themselves or other officers in the dark video footage. In June 2020, they both worked extended shifts and were involved in multiple encounters involving the protests. As Respondent Lance explained, the days “bled into one another.” (Tr. 281) The encounters in this particular case, which were brief in duration, did not stand out for them. Even after the protests, more than a year passed before the interviews, during which time each Respondent continued to engage in police work. Under the totality of these circumstances, it is not unreasonable that both Respondents were unable to recall this incident, or identify themselves in the video footage, during their remote CCRB interviews.

The CCRB has the burden of proving, by a preponderance of the credible evidence, that each Respondent was being intentionally misleading in their responses during their interviews. The record has failed to do so, and I find both Respondents not guilty of making misleading statements.

### PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department’s Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent Johnson’s employment history also was examined (*See* 38 RCNY § 15-07). Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum. In his seven years with the Department, Respondent Johnson has no

formal disciplinary record, has been awarded three medals for Excellent Police Duty, seven for Meritorious Police Duty, and has received consistently strong annual performance evaluations.

Respondent Johnson, who was appointed to the Department on October 7, 2015, has been found guilty of wrongfully pushing an individual without police necessity. The presumptive penalty for the wrongful use of non-deadly force resulting in no injury is 10 penalty days, and the mitigated penalty is five days. For this offense, the CCRB recommends the mitigated penalty of five vacation days.

As discussed above, Respondent's push of § 87(2)(b) was gratuitous and unreasonable, and there needs to be appropriate accountability. However, on balance, I agree with the CCRB that mitigation is warranted here. Respondent did not punch or kick § 87(2)(b) and there was no intent to injure; rather, he used minimal force, pushing § 87(2)(b) one time from behind.

Additionally, under the unique circumstances presented here, where Respondent and his fellow officers were dealing with a violent crowd in an extremely challenging environment, I find that further mitigation than that provided by the Disciplinary Guidelines is warranted. This incident occurred in the midst of a series of protests, where Respondent Johnson was required to work 12-hour tours under extraordinarily stressful circumstances. Respondent Johnson described this period as "the darkest days that I have worked in this Department." (Tr. 213) This context, coupled with Respondent's otherwise strong record with the Department, warrants a lesser penalty for his push of § 87(2)(b). Taking into account the totality of the facts and issues in this matter, I recommend that Respondent forfeit three (3) vacation days.



Respectfully submitted,

A handwritten signature in blue ink, appearing to read "Jeff S. Adler".

Jeff S. Adler  
Assistant Deputy Commissioner Trials





ERIC L. ADAMS  
MAYOR

**CIVILIAN COMPLAINT REVIEW BOARD**  
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ARVA RICE  
INTERIM CHAIR

March 28, 2023

Honorable Keechant L. Sewell  
Police Commissioner  
New York City Police Department  
One Police Plaza  
New York, NY 10038

Re: Inspector Jesse Lance  
DADS #: 2021-24423

Police Officer Corey Johnson  
DADS#: 2021-24426

Dear Commissioner Sewell:

The above-referenced disciplinary matter was tried on February 16, 2023, and March 2, 2023, by Administrative Prosecutor, Nicole Jardim, Esq., for the New York City Civilian Complaint Review Board (hereinafter "CCRB"), pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

CCRB has reviewed the draft decision of Assistant Deputy Commissioner of Trials ("ADCT"), Jeff S. Adler, dated March 14, 2023. I respectfully submit the following comments regarding that draft decision pursuant to *Fogel v. Board of Education*, 48 A.D.2d 925 (2d Dept. 1975).

**Respondent, Inspector Jesse Lance, was charged with the following:**

1. Inspector Jesse Lance, on or about June 4, 2020, at approximately 2215, while assigned to Housing Borough Brooklyn, and on duty, in the vicinity of Washington Avenue, between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he struck § 87(2)(b) multiple times with a baton, without police necessity.

PG 221-02, PAGE 2, Prohibition 11 USE OF FORCE

2. Inspector Jesse Lance, on or about June 4, 2020, at approximately 2215, while assigned to Housing Borough Brooklyn, and on duty, in the vicinity of Washington Avenue,

between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he used physical force against § 87(2)(b) in that he grabbed and pushed § 87(2)(b) without police necessity.

PG 221-02, page 2, Prohibition 11 USE OF FORCE

3. Inspector Jesse Lance, on or about August 11, 2021, at approximately 1321, while assigned to Housing Borough Brooklyn, and on duty, in the vicinity of 100 Church Street, New York County, provided a misleading official statement to the CCRB in that he stated he was unable to identify himself as the officer striking § 87(2)(b) with the baton in the video of the incident, despite identifying himself as the subject officer in still photographs of the same incident.

AG 304-10, MAKING FALSE STATEMENTS

**Respondent, Police Officer Corey Johnson, was charged with the following:**

1. Police Officer Corey Johnson, on or about June 4, 2020, at approximately 2215, while assigned to the 077 Detective Squad and on duty, in the vicinity of Washington Avenue, between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he pushed § 87(2)(b) without police necessity.

PG 221-02, PAGE 2, Prohibition 11 USE OF FORCE

2. Police Officer Corey Johnson, on or about September 8, 2021, at approximately 1109, while assigned to the 077 Detective Squad, and on duty, in the vicinity of 100 Church Street, New York County, provided a misleading official statement to the CCRB in that he stated he did not recognize himself or any officers depicted in the video of the incident, despite identifying himself as the subject officer in still photographs of the same incident.

AG 304-10, MAKING FALSE STATEMENTS

The Court found Respondent Lance Not Guilty of Specifications One (1), Two (2) and Three (3). It is respectfully requested that you reject ADCT Adler's finding on Specification One (1), Specification Two (2), and Specification Three (3), find Respondent Lance Guilty of Specification One (1), Specification Two (2), and Specification Three (3), and that you accept CCRB's recommended penalty of a forfeiture of thirty (30) vacation days and dismissal probation.

The Court found Respondent Johnson Guilty of Specification One (1) and Not Guilty of Specification Two (2). It is respectfully requested that you accept ADCT Adler's finding on Specification One (1) and reject ADCT Adler's finding on Specification Two (2), and further accept CCRB's recommended penalties of a forfeiture of five (5) vacation days for Specification One (1) and a forfeiture of twenty (20) vacation days for Specification Two (2).



## STATEMENTS OF FACTS

CCRB adopts the statements of facts articulated in ADCT Adler's Draft Decision.

### RESPONDENT LANCE IS GUILTY OF WRONGFULLY USING FORCE AGAINST § 87(2)(b) WHEN HE STRUCK HIM TWICE WITH A BATON AND PUSHED HIM UP AGAINST THE GREEN SUBWAY FENCE

CCRB disagrees with the Court's finding that Inspector Lance was not guilty of Specification One (1) and its conclusion that Inspector Lance testified "in a detail, logical manner about his encounter with § 87(2)(b) (Draft Decision 11). The evidence submitted clearly revealed Inspector Lance striking § 87(2)(b) twice and pushing him up against the green subway wall for no apparent reason. (CCRB Exs. 1 & 7).

§ 87(2)(b) testified that at the time of the incident, he was riding his bicycle from his mother's house to the home of his child's mother. He stated that he was wearing a dark, navy shirt, light blue shorts and a bookbag on his back. (Tr. 148) When he approached the intersection of Washington and Fulton Street, he testified that he stopped at the corner because he observed police officers pushing and cursing at protestors. He stated that he stopped for approximately five minutes to observe what was happening before he heard somebody from behind tell him "Get the fuck out of here." (Tr. 149-150). § 87(2)(b) testified that he had the bike between his legs and was trying to turn walk away when he was struck by Inspector Lance with a baton on the right side in the neck and shoulder area. After being struck with the baton, § 87(2)(b) testified that the same Inspector grabbed him by his shirt and pushed him up against the green wall where other officers jumped in and pulled him to the ground. When he asked what he did wrong, he received no response from Inspector Lance. § 87(2)(b) testified that he was then arrested for violating curfew and then given a summons which was later dismissed. (Tr. 155).

Inspector Lance testified that on the night in question, protestors were playing a "cat and mouse" game, using their bicycles as barriers to evade the police. He testified on direct that he initially observed § 87(2)(b) in the street obstructing police officers with his bicycle. Inspector Lance testified that when he approached § 87(2)(b) on the sidewalk, he attempted to effect a lawful arrest for obstruction and violation of the curfew but that when he attempted to do so, § 87(2)(b) pushed his arm away. He stated that when § 87(2)(b) pushed his arm away, he used his baton to strike § 87(2)(b) to gain compliance. He stated that he struck § 87(2)(b) twice in the backpack and then grabbed § 87(2)(b) and maneuvered him against a fence to arrest him. Inspector Lance testified that he when he did this, § 87(2)(b) resisted by latching onto the fence until other police officers pulled him away and brought him to the ground. (Tr. 259, 260, 264, 265).

The Court credited Inspector Lance's testimony. However, when evaluated closely, it is clear that Inspector Lance's testimony is convenient and not supported by the objective credible evidence. First, there were several important details that Inspector Lance testified to at trial regarding the night in question that he never mentioned in his CCRB interview. Inspector Lance was interviewed by the CCRB on August 11, 2021, approximately 15 months after the incident. During the interview he stated that he was not wearing a body worn camera that night and did not have a memo book or any documentation regarding the incident. (CCRB Ex. 6). Throughout his interview, he claimed that he had no recollection of that night or of any interaction with § 87(2)(b). Investigator Dean showed him both video and photographs of the incident and

Inspector Lance insisted that he did not recall that night and that there was nothing that could refresh his recollection as to the incident or his interaction with § 87(2)(b). At trial, approximately 32 months after the incident, Inspector Lance testified that he did in fact recall that night as well as his interaction with § 87(2)(b). At trial, Inspector Lance not only provided a detailed account of his observations of § 87(2)(b) but also provided great detail of his initial interaction with § 87(2)(b). He testified as to this so called “cat and mouse” game that § 87(2)(b) was engaged in throughout the night which led him to approach § 87(2)(b) to arrest him for obstructing. (Tr. 259, 262, 311). He also testified that he recalled his initial interaction with § 87(2)(b) and that when he approached him make the arrest, § 87(2)(b) pushed him away. (Tr. 260, 264). This testimony is entirely different than the one he provided, closer in time to the incident, during his CCRB interview. When asked on cross examination how he was now able to remember what happened that night, Inspector Lance stated that he reviewed the discovery. However, he could not point specifically to any one piece of discovery. When asked if there was any particular video or documentation in the discovery that refreshed his recollection as to his observations and interaction with § 87(2)(b) that night, he said there was none. (Tr.311, 312, 313, 314). If this “cat and mouse” game had occurred or if § 87(2)(b) had actually pushed Inspector Lance that night, he would have remembered during the CCRB interview. In addition, when asked on cross examination whether § 87(2)(b) was arrested for pushing him, Inspector Lance admitted that he was not. (Tr. 292, 293). Had § 87(2)(b) pushed the Inspector, he would have most certainly been arrested for assaulting a member of service. It is hard to believe that someone who initially had no recollection of the night in question 15 months after the incident was then able to recall that night and his specific interactions with § 87(2)(b) in detail, 32 months later, without a specific video or document that captured the details included in his testimony. Inspector Lance’s trial testimony is not credible.

Second, Inspector Lance testified that he struck § 87(2)(b) with his baton to gain compliance because § 87(2)(b) pushed him. Inspector Lance also claimed that he grabbed § 87(2)(b) and pushed him up against the green wall because he was trying to walk away from him. The Court incorrectly agreed with Inspector Lance stating that “§ 87(2)(b) resisted Respondent Lance’s efforts to [place him under arrest], first pushing his arm away, then trying to walk off.” (Draft Decision 11). However, the video evidence (CCRB Exs.1 & 7), depicts a very different interaction. Inspector Lance is seen charging towards § 87(2)(b) who is standing on the sidewalk with his bike in between his legs. Inspector Lance is approaching § 87(2)(b) with his baton already in his hand and raised in the air in preparation to strike him. Before § 87(2)(b) can say or do anything, the video shows Inspector Lance striking § 87(2)(b) while § 87(2)(b) already has his back partially to him. § 87(2)(b) does lift his arm up, but it is clear from the video that this is in reaction to Inspector Lance approaching him with a baton. § 87(2)(b) is not using his hand to push Inspector Lance but rather to shield himself from the baton strikes. When asked on cross examination if Inspector Lance already had his baton in his hand ready to strike before the alleged push, Inspector Lance admitted that he had his baton out before any push. (Tr. 289). The video also does not show § 87(2)(b) walking away from an arrest. Contrary to Inspector Lance’s testimony, § 87(2)(b) is unable to walk away as Inspector Lance is seen in the video already holding onto him with one hand. The video evidence shows that immediately after striking § 87(2)(b) twice, Inspector Lance grabs § 87(2)(b) with his other hand and pushes him up against the green subway wall. In the video, § 87(2)(b) can be heard asking, “What did I do, what did I do.” (CCRB Exs. 1 & 7).

Lastly, in reaching its conclusion that the force used by Inspector Lance here was reasonable, the Court notes that “Respondent Lance was particularly careful to strike the

backpack, as opposed to § 87(2)(b) body, in order to use the minimal amount of force necessary under the circumstances.” (Draft Decision 11). The Court is incorrect in its analysis. Striking § 87(2)(b) with a baton was not reasonable nor was it a minimal amount of force. There is no evidence that § 87(2)(b) was acting violently or posed a threat to Inspector Lance or others. When Inspector Lance approached § 87(2)(b) he was not threatening him, not cursing at him or even trying to run away. (Tr. 283, 288, 289). When Inspector Lance approached § 87(2)(b) he approached him already with the intent to strike him with his baton. When asked on cross examination if he warned § 87(2)(b) that he was going to be struck with the baton or if he took any steps to try to deescalate the situation before using force, Inspector Lance stated that he did not. (Tr. 289, 296, 302). Finally, § 87(2)(b) was not being arrested for a violent crime. He was being arrested for violating curfew, a violation. (Tr. 293). The use of force here by Inspector Lance, regardless of where the baton made contact, was unreasonable and unnecessary given the totality of the circumstance.

Here, Inspector Lance wrongfully used force when he struck § 87(2)(b) twice with his baton and then pushed him up against the green subway wall. Inspector Lance should be found guilty of Specifications 1 and 2 and CCRB’s recommended presumptive penalties of 10 vacation days for each Specification, should be imposed.

**RESPONDENT LANCE IS GUILTY OF PROVIDING A MISLEADING STATEMENT  
TO THE CIVILIAN COMPLAINT REVIEW BOARD**

CCRB disagrees with the Court’s finding that Inspector Lance was not guilty of Specification 3. Inspector Lance was interviewed by the CCRB on August 11, 2021 (CCRB Ex. 6). Investigator Dean testified at trial that she interviewed Inspector Lance and shared her screen to show both videos and photographs of the incident. (Tr. 57). Inspector Lance stated that he did not recall the incident and only identified himself in some of the photographs that were shown to him. Despite Inspector Lance stating he was unable to identify himself as the officer striking § 87(2)(b) with a baton in the video of the incident, he identified himself in photos taken after that moment. Furthermore, even after being shown the video footage, he denied having any knowledge of the incident. (CCRB Ex. 6, 24 lines 24-25, 25, 26, 27 lines 1-15). At trial, Inspector Lance identified himself in that same video that was shown to him during his CCRB interview. (Tr. 256). He testified that he was now able to identify himself in that same video because he had an opportunity to watch it multiple times. However, this could have also been done during the CCRB interview. At no point during the interview did Inspector Lance ask for the video to be brightened, slowed down or played multiple times to aid him in identifying himself.

Administrative Guide 304-10 defines a misleading statement as a statement that is intended to misdirect the fact finder, and materially alter the narrative by making repeated claims of "I do not remember" or "I do not know" when a reasonable person under similar circumstances would recall, or have been aware of, such material facts.

Given that Inspector Lance repeatedly claimed he did not recall this incident, despite being presented with photo and video evidence of the incident and identifying himself as the subject



officer in said photographs, Inspector Lance provided a misleading statement pursuant to Administrative Guide 304-10.

### **RESPONDENT JOHNSON IS GUILTY OF PROVIDING A MISLEADING STATEMENT TO THE CIVILIAN COMPLAINT REVIEW BOARD**

CCRB disagrees with the Court's finding that Police Officer Johnson was not guilty of Specification 2. Officer Johnson was interviewed by the CCRB on September 8, 2021 (CCRB Ex. 4). Investigator Dean testified at trial that she interviewed Officer Johnson and that she showed him both photographs of video of the incident. (Tr. 53). During the interview, Officer Johnson stated that he did not recognize any officers depicted in the video of the incident, including himself but identified himself in photos taken contemporaneously with the video. During the interview he also stated that he could not tell if he saw a push in the video. Moreover, upon viewing several photos of a fellow officer from the same precinct on the date of the incident, Police Officer Erdman, Officer Johnson stated he did not recognize the officer and said he was unable to tell whether he was from his command. Lastly, even after being shown the video footage, he denied having any knowledge of the incident. (CCRB Ex. 4, 18 lines 17-25, 19 lines 2-25, 32 lines 23-25, 33 lines 2-25, 34 lines 1-8). At trial, Officer Johnson identified himself as the officer pushing § 87(2)(b) in that same video that was shown to him during his CCRB interview. (Tr. 241).

Administrative Guide 304-10 defines a misleading Statement as a statement that is intended to misdirect the fact finder, and materially alter the narrative by making repeated claims of "I do not remember" or "I do not know" when a reasonable person under similar circumstances would recall, or have been aware of, such material facts

Given that Police Officer Johnson repeatedly claimed he did not recall this incident, despite being presented with photo and video evidence of the incident and identifying himself as the subject officer in said photographs, and that he stated he was unable to identify Police Officer Erdman, despite him being a fellow officer from his same command, Office Johnson provided a misleading statement pursuant to Administrative Guide 304-10.

### **CONCLUSION**

The Court found Respondent Lance Not Guilty of Specifications One (1), Two (2) and Three (3). It is respectfully requested that you reject ADCT Adler's finding on Specification One (1), Specification Two (2), and Specification Three (3), find Respondent Lance Guilty of Specification One (1), Specification Two (2), and Specification Three (3), and that you accept CCRB's recommended penalty of a forfeiture of thirty (30) vacation days and dismissal probation.

The Court found Respondent Johnson Guilty of Specification One (1) and Not Guilty of Specification Two (2). It is respectfully requested that you accept ADCT Adler's finding on Specification One (1) and reject ADCT Adler's finding on Specification Two (2), and further accept CCRB's recommended penalties of a forfeiture of five (5) vacation days for Specification One (1) and a forfeiture of twenty (20) vacation days for Specification Two (2).

Respectfully submitted,

*Nicole Jardim*

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Nicole Jardim, Esq.

Prosecutor

Administrative Prosecution Unit

Civilian Complaint Review Board

Cc: Louis C. La Pietra, Esq.

John Tynan, Esq.



OFFICE OF THE POLICE COMMISSIONER  
ONE POLICE PLAZA • ROOM 1400

June 16, 2023

Memorandum for: Deputy Commissioner, Trials

Re: **Inspector Jesse Lance**  
Tax Registry No. 923789  
Housing Borough Brooklyn  
Disciplinary Case No. 2021-24423

**Police Officer Corey Johnson**  
Tax Registry No. 960090  
77 Detective Squad  
Disciplinary Case No. 2021-24426

The above named members of the service appeared before Assistant Deputy Commissioner Jeff S. Adler on February 16 and March 2, 2023, and was charged with the following:

**DISCIPLINARY CASE NO. 2021-24423**

1. Inspector Jesse Lance, on or about June 4, 2020, at approximately 22:15, while assigned to Housing Borough Brooklyn, and on duty, in the vicinity of Washington Avenue, between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he struck § 87(2)(b) multiple times with a baton without police necessity.

**P.G. 221-02, Page 2, Prohibition 11**

**USE OF FORCE**

2. Inspector Jesse Lance, on or about June 4, 2020, at approximately 22:15, while assigned to Housing Borough Brooklyn and on duty, in the vicinity of Washington Avenue, between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he used physical force against § 87(2)(b) in that he grabbed and pushed § 87(2)(b) without police necessity.

**P.G. 221-02, Page 2, Prohibition 11**

**USE OF FORCE**

3. Inspector Jesse Lance, on or about August 11, 2021, at approximately 13:21, while assigned to Housing Borough Brooklyn and on duty, in the vicinity of 100 Church Street, New York County provided a misleading official statement to the CCRB, in that he stated that he was unable to identify himself as the officer striking § 87(2)(b) with the baton in the video of the incident, despite identifying himself as the subject officer in still photographs of the same incident.

**P.G. 304-10**

**MAKING FALSE STATEMENTS**



**DISCIPLINARY CASE NO. 2021-24426**

1. Police Officer Corey Johnson, on or about June 4, 2020, at approximately 22:15, while assigned to 077 Detective Squad and on duty, in the vicinity of Washington Avenue, between Fulton Street and Atlantic Avenue, Kings County, wrongfully used force, in that he pushed § 87(2)(b) without police necessity.

**P.G. 221-02, Page 2, Prohibition 11**

**USE OF FORCE**

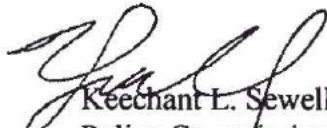
2. Police Officer Corey Johnson, on or about September 8, 2021, at approximately 11:09, while assigned to 077 Detective Squad and on duty, in the vicinity 100 Church Street, New York County, provided a misleading official statement to the CCRB in that he stated that he did not recognize himself or any officers depicted in the video of the incident, despite identifying himself as the subject officer in still photographs of the same incident.

**P.G. 304-10**

**MAKING FALSE STATEMENTS**

In a Memorandum dated March 28, 2023, Assistant Deputy Commissioner Jeff S. Adler found Inspector Jesse Lance not guilty of all Specifications in Disciplinary Case No. 2021-24423, and Police Officer Corey Johnson was found guilty of Specification No. 1 and not guilty of Specification No. 2 in Disciplinary Case No. 2021-24426. Having read the Memorandum and analyzed the facts of this matter, I approve the findings for Inspector Lance and Police Officer Johnson, but disapprove the penalty for Police Officer Johnson.

After reviewing the facts and circumstances of this matter, I have determined that the mitigated penalty under the Disciplinary System Penalty Guidelines is warranted. Therefore, Police Officer Johnson shall forfeit five (5) vacation days, as a disciplinary penalty.

  
Keechant L. Sewell  
Police Commissioner